

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

**ANGELA BRACCO, a Permanent Certificated Employee,
Moving Party,**

and

YUBA COUNTY OFFICE OF EDUCATION,

Responding Party.

OAH No. 2024120511

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

(Ed. Code, § 44939, subd. (c)(4))

Administrative Law Judge Michelle Dylan, State of California, Office of
Administrative Hearings, heard this matter on January 10, 2024, by videoconference.

Andrea Price, Attorney at Law, represented moving party Angela Bracco.

Amanda Bray, Attorney at Law, represented responding party Yuba County Office of Education (County).

PROCEDURAL HISTORY

On October 8, 2024, the District issued a statement of charges against moving party Bracco alleging multiple causes for dismissal including immoral conduct, pursuant to Education Code section 44932, subdivision (a)(1). The notice of recommended disciplinary action (termination) and statement of charges was served upon Bracco on October 8, 2024. The County placed Bracco on immediate suspension without pay pursuant to Education Code section 44939, based upon the charge of immoral conduct. The notice of immediate suspension and intention to dismiss was served on Bracco on November 14, 2024.

On December 3, 2023, Bracco filed a request for hearing and notice of defense. On December 11, 2024, Bracco filed a motion for immediate reversal of her suspension without pay, pursuant to Education Code section 44939, subdivision (c)(1). She argues that the County has not alleged a sufficient basis to place her on immediate unpaid status because the allegations in the statement of charges do not state sufficient facts to constitute immoral conduct. Bracco requests an order reversing her suspension without pay.

DISCUSSION

Education Code section 44939, subdivision (b), provides, in relevant part, that a school district may immediately suspend a permanent employee of the school district who has been charged “with immoral conduct, conviction of a felony or of any crime

involving moral turpitude, with incompetency due to mental disability, with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district, or with violation of (Education Code) section 51530."

Education Code section 44939, subdivision (c)(1), authorizes the permanent employee to seek review of the order of suspension by motion to the Office of Administrative Hearings. This section limits the review of a motion to immediately reverse a suspension to "a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

The written submissions of the parties and their oral argument have been considered. Based upon a review of the charges, the County has alleged facts which, if true, are sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b), on the grounds of immoral conduct.

ORDER

The motion for immediate reversal of the suspension of Angela Bracco by Yuba County Office of Education is denied.

DATE: 01/23/2025

Michelle Dylan

MICHELLE DYLAN

Administrative Law Judge

Office of Administrative Hearings